

9	Pinzon vs. Opes Investments Inc. 2025-01509447	Motion Determining that Plaintiff is a Consumer Plaintiff Daniel Pinzon’s “Motion for Order (1) Determining Plaintiff is a Consumer for Purposes of Arbitration; (2) Requiring Defendant to Bear all Arbitration Costs; or, in the alternative, (3) Declaring Arbitration Provision Unenforceable” is GRANTED in part. The court finds that moving plaintiff has sufficiently demonstrated he is entitled to “relie[f] from an order compelling arbitration due to ... inability to afford to initiate or continue arbitration proceedings.” (<i>Sanchez v. Superior Court</i> (2025) 108 Cal.App.5th 615, 630, citing <i>Roldan v. Callahan & Blaine</i> (2013) 219 Cal.App.4th 87; plaintiff’s supplemental declaration [ROA 69], ¶¶ 3-14, 17, 20, 22-24, and Ex. A-E thereto.) The court further finds that “financial status is not a result of the party's intentional attempt to avoid arbitration ...” (<i>Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.</i> (2018) 22 Cal.App.5th 970, 981; ROA 69, ¶¶ 35, 38.) Accordingly, the court orders that the arbitration shall continue so long as defendant Opes Investment Inc. agrees to pay, or the arbitrator orders it to pay, all fees and costs of the arbitration; and (2) “if neither of those occur, the arbitration shall be deemed ‘had’ and the case may proceed in the superior court.” (<i>Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.</i> , <i>supra</i> at 981.) The court sets a Status Conference re: Arbitration for January 8, 2027 at 8:30 a.m. in this department. At least five days prior, the parties shall file a joint statement as to the status of arbitration, including whether defendant Opes Investment Inc. agrees to pay, or the arbitrator orders it to pay, all fees and costs of the arbitration, and the current status of any arbitration proceedings at that time. Plaintiff shall give notice.
10	Rutledge vs. California Civil Rights Department 2026-01543235	Petition for Writ <i>Hearing vacated. Court set a hearing for 1/14/27. See minute order dated 9/23/26.</i>
11	Sanchez vs. Martinez	Motion to Contest Good Faith Settlement Defendant / cross-complainant Joseph Emanuel Martinez’

	2025-01463096	motion to contest good faith settlement is GRANTED, without prejudice to the settling party providing additional information to the court by way of a new application. (Code Civ. Proc., § 877.6.) The original hearing was continued for the parties to provide supplemental briefing as to “a rough approximation of plaintiff[’s] total recovery and the settlor’s proportionate liability,” as well as “the financial conditions ... of settling defendant[.]” Joe Ortegon [“settlor”]. (<i>Tech-Bilt, Inc. v. Woodward-Clyde & Associates</i> (1985) 38 Cal.3d 488, 499 [“<i>Tech-Bilt</i>”] [factors considered in determining whether settlement is in good faith].) [See 6-30-26 minute order (ROA 103).] There is still insufficient evidence before the court as to the above factors, to find that the settlement was in good faith. First, settlor provides no evidence, as opposed to argument, as to his “proportionate liability” and/or the circumstances of the underlying incident. (<i>Tech-Bilt, supra</i> at 499; see also <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1262 [“<i>Grand Terrace</i>”] [“Settlor’s percentage of liability is the touchstone question to be considered by the trial court in a contested good faith settlement hearing”].) While settlor’s supplemental brief (ROA 120) describes the underlying incident, there is no evidence supporting same. (<i>In re Zeth S.</i> (2003) 31 Cal.4th 396, 413, fn. 11 [“unsworn statements of counsel are not evidence”]; <i>Gilman v. Dalby</i> (2021) 61 Cal.App.5th 923, 940 [“statements in motions are not evidence”].) In contrast, defendant Martinez’ evidence includes his declaration indicating the subject incident involved three separate impacts: an initial “minor” impact between the Sanchez and Martinez vehicles, and a later collision between the Martinez and Ortegon vehicles, then a “very forceful” impact between the Ortegon vehicle and plaintiff Sanchez’ vehicle. (ROA 141, Martinez Decl., ¶¶ 2-8.) Even if Sanchez and Martinez bear some responsibility for stopping their vehicles in the HOV lane after the initial impact, it appears from the current evidentiary record that settlor Ortegon bears more substantial liability for plaintiff’s claimed injuries than indicated in his application and supporting papers. As to a “rough approximation of plaintiff[’s] total recovery,” settlor provides evidence of approximately \$17,500 in damages claimed by plaintiff Douglas Alexander Sanchez (medical expenses and loss of earnings), as disclosed in written discovery
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		responses. (ROA 120.) In contrast, Martinez’ evidence shows that plaintiff has served a settlement offer to compromise in the amount of \$99,999 (ROA 141, Zurawski Decl., ¶ 2), which well exceeds the amount of the current \$25,000 settlement. There is also no evidence of settlor’s financial condition, and/or whether settlor has any other assets to satisfy a potential judgment. (<i>Tech-Bilt, supra</i> at 499; see also <i>Grand Terrace, supra</i> at 1263-1264 [“The wealth or nonwealth of the settling defendant is a factor for the trial court to consider under <i>Tech-Bilt</i>”].) While settlor provides a signed “Affidavit of No Other Insurance,” which also indicates settlor was not in course and scope of employment, the attached affidavit is not under penalty of perjury. (Code Civ. Proc., § 2015.5 [declarations/affidavits must be “subscribed” under penalty of perjury by declarant]; <i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal. 4th 601, 612 [a declaration which does not comply with Code Civ. Proc., § 2015.5 is “defective” and of no evidentiary value].) Moving defendant Joseph Emanuel Martinez shall give notice.
12	Wynne vs. FCA US LLC 2026-01556389	Motion to Enforce CCP 871.26(H) <i>Continued to 10/21/26 in Department CM02.</i>